PLSC 197 / SODA 110N: Social Data, Technology, and Artificial Intelligence

Assignment 8: A Tale of Two Frameworks

Assignment

For this assignment, choose **one** of the following documented controversies as your focus:

- *The Clearview AI case*: The scraping of billions of public photos to build a facial recognition database sold to law enforcement, and the divergent regulatory responses in the US, UK, EU, Australia, and Canada.
- *The ChatGPT Italy ban (2023)*: The Italian Data Protection Authority's temporary block of ChatGPT on GDPR grounds, the subsequent negotiations, and what the episode revealed about the legal basis for training LLMs on scraped personal data.
- *Meta's cross-platform data merging*: The documented practice of combining data from Facebook, Instagram, WhatsApp, and third-party apps to build unified behavioral profiles, and the regulatory actions this has triggered in the EU versus the U.S.
- *The Samsung ChatGPT leak (2023)*: Samsung employees inadvertently uploading proprietary source code and meeting notes to ChatGPT, raising questions about corporate data governance, employee consent, and what happens to data once it enters a training pipeline.
- *Spotify's podcast listener profiling*: Spotify's documented use of listening behavior, location data, and inferred emotional states to build advertiser profiles, and what this reveals about the extension of surveillance capitalism into audio media.

Using publicly available journalism, regulatory decisions, legal filings, and the course readings, write a brief paper that addresses:

1. The facts of the controversy: Briefly describe what happened, and why that generated privacy concerns. Be specific about what data was collected, by whom, for what purpose, and how users were or were not informed.
2. The U.S. response: What did U.S. law (federal and state) do or fail to do in response? If there was regulatory action, what was its basis and what did it accomplish? If there was no significant U.S. regulatory response, why not? What gaps in the legal framework could account for the inaction?
3. The EU response: How did the GDPR, the EU AI Act, or other relevant data protection authorities treat the same conduct? Was this constituted as a violation, and if so what was the remedy? If the EU framework produced a different outcome than the US, what specifically accounts for the difference — is it the law itself, enforcement capacity, cultural attitudes toward privacy, or something else?

4. The deeper tension: Drawing on Zuboff's arguments about surveillance capitalism and the Stanford chatbot privacy study's findings about the regulatory vacuum, what does this controversy illustrate about the structural challenges of governing privacy and surveillance in data-driven AI systems? Is the EU approach an adequate solution, or does it address symptoms while leaving the underlying dynamics intact? Take a position and defend it.

Details

Your assignment should include a separate title page with your name, the name of the course, the name of the assignment, and the date on which it was completed / submitted. Include a copy of the content you analyzed (either in the form of an image / audio / video file, or a permanent weblink to it) as a separate appendix. The body of the written assignment should be *double-spaced*, in a conventionally-sized (11 or 12 point) font. Each written part of the assignment should be as short or long as you deem necessary; a rough target might be a total of 4-5 pages, *not* including references. For this assignment, you should cite any sources you drew upon, consistently using a citation style of your choice.

This assignment must be completed and submitted by Friday, November 20, 2026 at 11:59 p.m. ET. Submit your assignment by *creating / converting your assignment into PDF format*, and emailing it to Dr. Zorn (at `zorn@psu.edu`). Assignments received after the due date will not be accepted. This assignment is worth a possible 100 points.